

25STCV21314 25STCV21314

County: los-angeles

Division: Civil Law and Motion

Department: 735

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Case Number: 25STCV21314 Hearing Date: July 28, 2026 Dept: 735

Bernard Gross v. Hyundai Motor

America, et al.

Defendant Hyundai Motor America's Motion
to Compel Arbitration.

In

July 2025, Plaintiff filed a complaint against Defendant Hyundai Motor America.

Defendant moves to compel arbitration. Plaintiff does not oppose.

Defendant

relies on the arbitration agreement contained in the Connected Services

Agreement ("CSA") agreed to by Plaintiff when he enrolled in Defendant's Bluelink
services. (Rao Dec., ¶¶22-24.) The

arbitration agreement provides: "Hyundai

and you agree to arbitrate any and all disputes and claims between us arising
out of or relating to this Agreement, Connected Services, Connected Services
Systems, Service Plans, the Vehicle...This agreement to arbitrate is intended to
be broadly interpreted and to make all disputes and claims between us subject
to arbitration to the fullest extent permitted by law. However, any dispute you or we may have
relating to copyrights or other intellectual property shall not be governed by
this agreement to arbitrate...The agreement to arbitrate otherwise includes, but
is not limited to: claims based in

contract, tort, warranty, statute, fraud, misrepresentation or any other legal
theory...claims relating to the Vehicle for which you seek product or service
support via the sites...." (Rao Dec., Ex.

C, §14.C.a.) Plaintiff's complaint alleges tort, statutory and warranty claims
pertaining to the "Vehicle." Tort,

statutory and warranty causes of action between Plaintiff and Defendant are expressly covered, as are any disputes “arising out of or relating to” the “Vehicle.” (Id. at Ex. C, §14.C.a.) Thus, the arbitration agreement applies to Plaintiff’s complaint on its face.

In addition, the arbitration agreement between the parties and the agreement includes a delegation clause delegating the question of the arbitration agreement’s scope to the arbitrator. “All issues are for the arbitrator to decide, including the scope and enforceability of this arbitration provision as well as the Agreement’s other terms and conditions, and the arbitrator shall have exclusive authority to resolve any such dispute relating to the scope and enforceability of this arbitration provision or any other term of this Agreement including, but not limited to any claim that all or any part of this arbitration provision or Agreement is void or voidable.” (Rao Dec., Ex. C, §14.C.c.)

Defendant also requests a stay of this action pending completion of arbitration.

CONCLUSION

The Court grants Defendant Hyundai Motor America’s Motion to Compel Arbitration. The action is stayed pending completion of arbitration. Defendant shall give notice.